

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



July 16, 2018

Honorable Brian Alvarez
Judge of the Superior Court
County of Fresno
1100 Van Ness Avenue
Fresno, CA 93724-0002

Re: Moua, Sorn
CDC No.: AP1862
Case No.: F12905682
Date of Sentence: April 29, 2013

Dear Honorable Brian Alvarez:

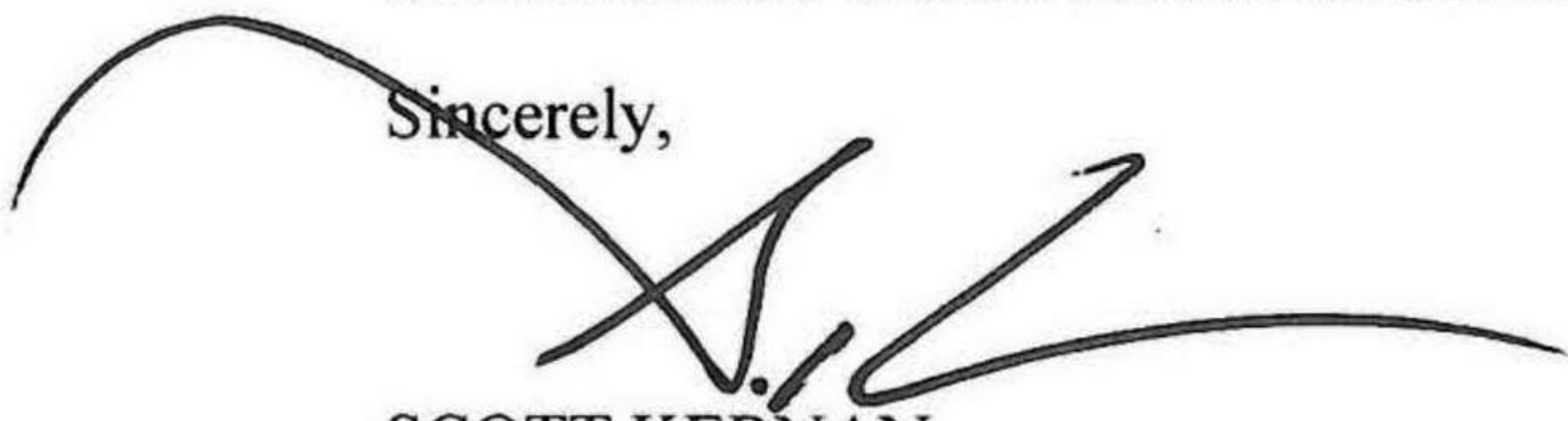
The purpose of this letter is to provide the court with authority to resentence Sorn Moua pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Moua was sentenced in 2013, and was convicted of section 245, subdivision (b), Assault With A Semiautomatic Firearm. The trial court sentenced inmate Moua on April 29, 2013. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Moua's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Moua's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced in accordance with the cited authority.

Sincerely,



SCOTT KERNAN
Secretary

Enclosures:
Abstract of Judgment-Prison Commitment-Determinate
Minute Order
First Amended Felony Complaint

cc: Honorable Alan M. Simpson, Fresno County Presiding Judge
Fresno District Attorney
Public Defender

Wario
FELONY ABSTRACT OF JUDGMENT—DETERMINATE
SINGLE, CONCURRENT, OR FULL-TERM CONSECUTIVE COUNT FORM
(Not to be used for multiple count convictions or for 1/3 consecutive sentences)

AP 1862
1233868
CR-290.1

SUPERIOR COURT OF CALIFORNIA, COUNTY OF FRESNO

PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: SORN MOUA AKA: SORN MOUR CII NO.: A1163007Y BOOKING NO.: 1233868		DOB: 02/27/1980	CASE NUMBER F12905682
FELONY ABSTRACT OF JUDGMENT ☒ PRISON COMMITMENT ☐ COUNTY JAIL COMMITMENT ☐ AMENDED ABSTRACT			
DATE OF HEARING 04/29/2013	DEPT. NO. 30	JUDGE BRIAN ALVAREZ	
CLERK S. OZUNA	REPORTER A. GAI	PROBATION NO. OR PROBATION OFFICER 246048/M. CASTRO	☐ IMMEDIATE SENTENCING
COUNSEL FOR PEOPLE NOELLE PEBET		COUNSEL FOR DEFENDANT BONNIE BITTER	☒ APPOINTED

1. Defendant was convicted of the commission of the following felony:

COUNT	CODE	SECTION NUMBER	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO./DATE/YEAR)	CONVICTED BY			TERM (L, M, U)	TIME IMPOSED	
						JURY	COURT	PLEA		YRS.	MOS.
3	PC	245(b)	ASSAULT WITH A SEMIAUTOMATIC FIREARM	2012	03/29/2013			X	L	3	0

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

COUNT	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL
3	PC186.22(b)(1)	10 YEARS	PC12022.7(a)	3 YEARS			13 0

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL

4. Defendant sentenced ☒ to prison per PC 1170(a) or (h)(3) ☐ to county jail per PC 1170(h)(1) or (2) ☐ per PC 667(b)-(i) or PC 1170.12 (strike prior) ☐ PC 1170(a)(3). Pre-confinement credits equal or exceed time imposed. Defendant was ordered to report to local Parole Office upon release.

5. FINANCIAL OBLIGATIONS (plus any applicable penalty assessments):

Restitution Fine(s): \$6160.00 per PC1202.4 (b) forthwith per PC 2085.5 if prison commitment \$6160.00 per PC 1202.45 suspended unless parole is revoked. \$ per PC 1202.44 is now due, probation having been revoked.

Restitution per PC1202.4 (f): ☐ \$ ☐ Amount to be determined to ☐ * victim(s) ☐ Restitution Fund

* ☐ Victim name(s), if known, and amount breakdown in item 8, below. * ☐ Victim name(s) in probation officer's report.

Fine(s): \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive

☐ Includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense.

☒ Court Security Fee of \$40.00 per PC 1465.8. ☒ Criminal Conviction Assessment of \$30.00 per GC 70373.

6. TESTING: a. ☒ Compliance with PC 296 verified b. ☐ AIDS per PC 1202.1 c. ☐ other (specify):

7. IMMEDIATE SENTENCING: ☐ Probation to prepare and submit a post sentence report to CDCR per PC 1203c. Def't Race / Nat'l Origin ASIAN

8. Other orders (specify):

9. TOTAL TIME IMPOSED: 16 0

10. ☐ MANDATORY SUPERVISION: Execution of a portion of the total jail time imposed in item 9 is suspended and deemed a period of mandatory supervision under PC 1170(h)(5)(B) as follows: Suspended portion: Served forthwith:

11. ☐ This sentence is to run concurrent with (specify):

12. REGISTRATION REQUIREMENT: ☒ per (specify code section): PC186.30

13. Execution of sentence imposed: a. ☒ at initial sentencing hearing. b. ☐ at resentencing per decision on appeal. c. ☐ after revocation of probation. d. ☐ at resentencing per recall of commitment. (PC 1170(d).) e. ☐ other (specify):

DATE SENTENCE PRONOUNCED	CREDIT FOR TIME SPENT IN CUSTODY TOTAL DAYS:	ACTUAL LOCAL TIME	LOCAL CONDUCT CREDITS	TIME SERVED IN STATE INSTITUTION
04/29/2013	314	274	☐ 2933 ☒ 2933.1 ☐ 4019	DMH CDCR CRC [] [] []

15. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.

To be delivered to ☐ the reception center designated by the director of the California Department of Corrections and Rehabilitation.

☐ county jail ☒ Other (specify): CDC WASCO

CLERK OF THE COURT: I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE T. VAN ZUYEN DATE 04/30/2013

This form is prescribed under PC 1213.5 to satisfy the requirements of PC 1213 for determinate sentences. Attachments may be used but must be referred to in this document.